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Maritime Labour Notice (MLN) – 006 (a)

To: Ship owners, Masters, Operators, Recognised Organisations, and Certifying Authorities

MLC Title 1.4 Recruitment and placement

This MLN provides guidance on compliance with Gibraltar regulations which give effect to MLC 2006 Title1.4. Implementation of these guidelines will be taken as evidence of compliance with the Gibraltar regulations. The guidelines do not preclude an organisation from demonstrating an equivalent or higher standard as an “alternative method” of evidence of compliance.

Associated requirements referred to in this notice:

Maritime Labour Convention 2006

Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2013. Reg. 9 and 10

Most regulations and notices are available on the Gibraltar Government website; www.gibraltarship.com

Latest versions of abovementioned requirements are applicable and must be referred to

Steve Gomez – Chief Surveyor

For & on behalf of the Maritime Administrator

Issued: 06 December 2024

All notices are available via <https://gibraltarship.com/notices/maritime-labour-notices>

This copy of the Administrative Instruction has been issued electronically and does not carry a signature or official stamp. A signed and stamped copy is available upon request

Key points

1. MLC 2006, Article II.1(h) defines a *Seafarer recruitment and placement service* as any person, company, institution, agency or other organization, in the public or the private sector, which is engaged in recruiting seafarers on behalf of shipowners or placing seafarers with shipowners.
2. Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2013 defines a seafarer recruitment service to mean:
 - 2.1. A business:
 - 2.1.1. whose primary purpose is the recruitment and placement of seafarers, or
 - 2.1.2. which recruits and places a significant number of seafarers; or
 - 2.2. a public service which recruits and places seafarers and which is operated in an orderly manner that protects and promotes seafarers' employment rights as provided in the Maritime Labour Convention.
3. There are three different types of businesses that deal with recruitment and placement and within the regulations there are requirements that apply, or don't apply, depending on the function that the business carries out. The three types of businesses are:
 - 3.1. "Employment business" (EB) is a business (whether or not carried on with a view to profit and whether or not carried on in conjunction with any other business) which supplies persons in the employment of the EB, to act for, and under the control of, other persons in any capacity (i.e. the seafarer is employed by the EB but is contracted to work on a ship owner's ship or ships);
 - 3.2. "Employment agency" (EA) means a business (whether or not carried on with a view to profit and whether or not carried on in conjunction with any other business) which provides services (whether by the provision of information or otherwise) for the purpose of finding workers employment or of supplying employers with workers for employment. (i.e. they have details of seafarers lodged with them and they put them in contact with a ship-owner, or a ship owner's representative, who then employs the seafarer on ships.);
 - 3.3. "Placement business" (PB) is a business engaged in working on behalf of a ship-owner and ensures that seafarers from either an EB or EA, or employed directly by a ship-owner, are allocated to and travel to and from ships operated by the ship-owner in line with the ship owner's requirements. While the Gibraltar regulations covered by this MLN do not apply to a PB they may request inspection and certification and the PB would need to show how they comply with the areas for inspection described in paragraph 5 below.

Recruitment and placement services based in Gibraltar

4. Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2013 are applicable in respect of a seafarer recruitment service operating in Gibraltar, which provide seafarer recruitment services to ships (not only Gibraltar registered ships).
5. In respect of paragraph 3, companies operating a seafarer recruitment service in Gibraltar will be subject to inspection by the Administration to ensure such services:
 - 5.1. do not use means, mechanisms or lists intended to prevent or deter seafarers from gaining employment for which they are qualified;
 - 5.2. do not impose fees or other charges borne directly or indirectly, in whole or in part, by the seafarer, other than the cost of the seafarer obtaining a national statutory medical certificate, the national seafarer's book and a passport or other similar personal travel document, not including however the cost of visas, which must be borne by the shipowner;
 - 5.3. maintain an up-to-date register of all seafarers recruited or placed through the service and keeps the register available for inspection by the Administration;
 - 5.4. ensure that seafarers are informed of their rights and duties under their employment agreements prior to or in the process of engagement and that proper arrangements are made for seafarers to examine their employment agreements before and after they are signed and for them to receive a copy of the agreements;

- 5.5. verifies that seafarers recruited or placed by the service are qualified and hold the documents necessary for the job concerned, and that the seafarers' employment agreements are in accordance with applicable laws and regulations and any collective bargaining agreement that forms part of the employment agreement;
 - 5.6. ensures, as far as practicable, that shipowners have the means to protect seafarers on the ship from being stranded in a foreign port;
 - 5.7. examines and responds to any complaint concerning the service's activities and advises the Maritime Administrator of any unresolved complaint; and
 - 5.8. ensures shipowners establish a system of protection, by way of insurance or an equivalent appropriate measure, to compensate seafarers for monetary loss that they may incur as a result of the failure of a recruitment and placement service or the relevant shipowner under the seafarers' employment agreement to meet its obligations to them, and ensure that seafarers are informed, prior to or in the process of engagement, of their rights under that system.
6. Companies carrying out recruitment and placement services of seafarers will be inspected annually for compliance with Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2013, requirements, and any other relevant requirements of Gibraltar law. Subject to the aforementioned compliance such companies will be issued with a certificate of compliance, valid for 5 years.
 7. Certified companies will be listed on the Gibraltar website for the information of other flag states and port state control organisations.

Use of recruitment and placement services not based in Gibraltar

8. Shipowners making use of seafarer recruitment and placement services as defined within Maritime Labour Convention 2006, Article II.1(h), who operate in a state having ratified the Maritime Labour Convention 2006, must ensure that any such providers are duly certified as being compliant with MLC 2006 recruitment and placement requirements.
9. Shipowners making use of seafarer recruitment and placement services as defined within Maritime Labour Convention 2006, Article II.1(h), who operate in a state not having ratified the Maritime Labour Convention 2006, must ensure that any such providers as a minimum meet the requirements described within paragraph 4 above.
10. In meeting the requirements of paragraph 8 above, shipowners must demonstrate that an effective system of periodically verifying compliance has been suitably implemented and maintained.
11. While there is no direct requirement for an EB operating in Gibraltar to demonstrate how they do this with services not based in Gibraltar it would be recommended for an EB to be able to demonstrate how they meet the above requirements of paragraphs 8 & 9 during annual inspections.